

7.	25CV0964	AMERICAN EXPRESS NATIONAL BANK vs. COTTLE
Relief from Default		

This matter was heard on February 13, 2026, based on a motion filed by Defendant on December 19, 2025, which requested the Court to set aside the default judgment entered against him pursuant to Code of Civil Procedure § 473(d), 415.10, 418.10. No party appeared at the hearing or requested oral argument, and the Court adopted its Tentative Ruling and denied the motion.

On February 23, 2026, Defendant filed a new motion requesting relief from the default judgment pursuant to Code of Civil Procedure § 473(b), alleging mistake, inadvertence, surprise or excusable neglect. It appears that the factual grounds alleged are that Defendant confused a case brought in Sacramento County to collect the same debt with this case filed in El Dorado County.

Considering that the Court and case number is identified on the first page of all pleadings the Court finds that this is not sufficient grounds to relieve the Defendant of the default entered against him on the basis of mistake or excusable neglect.

TENTATIVE RULING #7: DEFENDANT’S MOTION TO SET ASIDE DEFAULT IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.